



Bill Number: H.B. 2456

Carroll Floor Amendment

**Reference to: REGULATORY AFFAIRS AND
GOVERNMENT EFFICIENCY S/E Committee amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires an applicant for a certificate environmental compatibility for a plant that is a nuclear generating unit to make an effort to prioritize the siting and development of the nuclear generating unit at a site that is located in or near a nuclear-ready community.
2. Requires the application, if the application for a certificate of environmental compatibility is for a site that is not located in or near a nuclear-ready community, to describe each nuclear-ready community the applicant considered for siting and development of the plant and explain why the applicant did not select a site that is located in or near a nuclear-ready community.
3. Specifies that the applicant's selection of a site for the siting and development of a nuclear generating unit that is not located in or near a nuclear-ready community does not automatically disqualify the site for a certificate of environmental compatibility.
4. Requires the Power Plant and Transmission Line Siting Committee, when evaluating the suitability of a site for a plant that is a nuclear generating unit, to consider, as evidence of the site's suitability for the plant, the content of all resolutions:
 - a) a nuclear-ready community has adopted; or
 - b) the county board of supervisors has adopted on behalf of a nuclear-ready community if the nuclear-ready community is an unincorporated census-designated place.
5. Requires the Arizona Commerce Authority (ACA), in consultation with the Arizona Corporation Commission, to develop and adopt criteria for awarding a nuclear-ready community designation to a community that demonstrates that the community is willing and ready for the siting and development of a nuclear generating unit in or near the community.
6. Outlines the criteria for a nuclear-ready community designation.
7. Defines a *nuclear-ready community* as a city, town or unincorporated census-designated place that has been awarded a nuclear-ready community designation by the ACA.
8. Makes technical changes.

CARROLL FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2456

(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 11-804, Arizona Revised Statutes, is amended to
4 read:

5 11-804. Comprehensive plan; contents

6 A. The commission shall formulate and the board of supervisors
7 shall adopt or readopt a long-term comprehensive plan for the development
8 of the area of jurisdiction in the manner prescribed by this article. The
9 comprehensive plan, with the accompanying maps, plats, charts and
10 descriptive matter, shall show the commission's recommendations for the
11 development of the area of jurisdiction. The comprehensive plan shall be
12 made with the general purpose of guiding and accomplishing a coordinated,
13 adjusted and harmonious development of the area of jurisdiction pursuant
14 to the present and future needs of the county. The comprehensive plan
15 shall be developed so as to conserve the natural resources of the county,
16 to ensure efficient expenditure of public monies and to promote the
17 health, safety, convenience and general welfare of the public. The
18 comprehensive plan may include studies and recommendations relative to the
19 location, character and extent of highways, railroads, bus and other
20 transportation routes, bicycle facilities, bridges, public buildings,
21 public services, schools, parks, open space, housing quality, variety and
22 affordability, parkways, hiking and riding trails, airports, forests,
23 wildlife areas, dams, projects affecting conservation of natural
24 resources, air quality, water quality, ~~and~~ floodplain zoning **AND ELECTRIC**
25 **POWER PRODUCTION AND DEMAND, INCLUDING SMALL MODULAR REACTORS AND DATA**
26 **CENTERS**. In the preparation of the comprehensive plan, the commission
27 shall make surveys and studies of the present conditions and prospective
28 future growth of the area of the jurisdiction. The comprehensive plan

1 shall be a public record, but its purpose and effect shall be primarily as
2 an aid to the county planning and zoning commission and to the board of
3 supervisors in the performance of their duties. The comprehensive plan
4 shall include provisions that identify changes or modifications that
5 constitute amendments and major amendments to the plan.

6 B. In addition to the other matters that are required or authorized
7 under this section and this article, for counties with a population of
8 more than one hundred twenty-five thousand persons, the comprehensive plan
9 shall include, and for other counties the comprehensive plan may include:

10 1. Planning for land use that designates the proposed general
11 distribution and location and extent of uses of the land for housing,
12 business, industry, ENERGY, MINING, agriculture, recreation, education,
13 public buildings and grounds, open space and other categories of public
14 and private uses of land appropriate to the county. The land use plan
15 shall include:

16 (a) A statement of the standards of population density and building
17 intensity recommended for the various land use categories covered by the
18 plan.

19 (b) Specific programs and policies that the county may use to
20 promote compact form development activity and locations where those
21 development patterns should be encouraged.

22 (c) Consideration of air quality and access to incident solar
23 energy for all general categories of land use.

24 (d) Policies that address maintaining a broad variety of land uses,
25 including the range of uses existing in the county at the time the plan is
26 adopted, readopted or amended.

27 (e) Currently identified sources of aggregates from maps that are
28 available from state agencies, information from the Arizona geological
29 survey on how to locate existing mines, consideration of existing mining
30 operations and suitable geologic resources, policies to preserve currently
31 identified aggregates sufficient for future development and policies to
32 avoid incompatible land uses, except that this subdivision does not affect
33 any permitted underground storage facility or limit any person's right to
34 obtain a permit for an underground storage facility pursuant to title 45,
35 chapter 3.1.

36 (f) DESIGNATION OF THE PROPOSED GENERAL DISTRIBUTION, LOCATION AND
37 EXTENT OF THE USES OF THE LAND FOR THE CONSTRUCTION AND OPERATION OF EXTRA
38 HIGH LOAD FACTOR CUSTOMERS, INCLUDING DATA CENTERS AND DATA CENTER
39 FACILITIES THAT ARE APPROPRIATE TO THE COUNTY.

40 2. Planning for circulation consisting of the general location and
41 extent of existing and proposed freeways, arterial and collector streets,
42 bicycle routes and any other modes of transportation as may be
43 appropriate, all correlated with the land use plan under paragraph 1 of
44 this subsection.

45 3. Planning for water resources that addresses:

46 (a) The known legally and physically available surface water,
47 groundwater and effluent supplies.

48 (b) The demand for water that will result from future growth
49 projected in the comprehensive plan, added to existing uses.

1 (c) An analysis of how the demand for water that will result from
2 future growth projected in the comprehensive plan will be served by the
3 water supplies identified in subdivision (a) of this paragraph or a plan
4 to obtain additional necessary water supplies.

5 4. Planning for energy use that:

6 (a) Encourages and provides incentives for efficient use of energy.

7 ~~(b) Identifies policies and practices for greater use of renewable~~
8 ~~energy.~~

9 (b) DESIGNATES [OF] THE PROPOSED GENERAL DISTRIBUTION, LOCATION AND
10 EXTENT OF THE USES OF THE LAND FOR CONSTRUCTION AND OPERATION OF THERMAL
11 AND NONTHERMAL ELECTRIC GENERATING UNITS APPROPRIATE TO THE COUNTY,
12 INCLUDING SMALL MODULAR REACTORS.

13 C. In addition to the other matters that are required or authorized
14 under this section and this article, for counties with a population of
15 more than two hundred thousand persons, the comprehensive plan shall
16 include, and for other counties the comprehensive plan may include:

17 1. Planning for open space acquisition and preservation. The open
18 space plan shall include:

19 (a) A comprehensive inventory of open space areas, recreational
20 resources and designations of access points to open space areas and
21 resources.

22 (b) An analysis of forecasted needs, policies for managing and
23 protecting open space areas and resources and implementation strategies to
24 acquire additional open space areas and further establish recreational
25 resources.

26 (c) Policies and implementation strategies designed to promote a
27 regional system of integrated open space and recreational resources and a
28 consideration of any existing regional open space plan.

29 2. Planning for growth areas, specifically identifying those areas,
30 if any, that are particularly suitable for planned multimodal
31 transportation and infrastructure expansion and improvements designed to
32 support a planned concentration of a variety of uses, such as residential,
33 office, commercial, tourism and industrial uses. The mixed use planning
34 shall include policies and implementation strategies that are designed to:

35 (a) Make automobile, transit and other multimodal circulation more
36 efficient, make infrastructure expansion more economical and provide for a
37 rational pattern of land development.

38 (b) Conserve significant natural resources and open areas in the
39 growth area and coordinate their location to similar areas outside the
40 growth area's boundaries.

41 (c) Promote the public and private construction of timely and
42 financially sound infrastructure expansion through the use of
43 infrastructure funding and financing planning that is coordinated with
44 development activity.

45 3. An environmental planning element that contains analyses,
46 policies and strategies to address anticipated effects, if any, of plan
47 elements on air quality, water quality and natural resources associated
48 with proposed development under the comprehensive plan. The policies and
49 strategies to be developed under this element shall be designed to have

1 countywide applicability and shall not require the production of an
2 additional environmental impact statement or similar analysis beyond the
3 requirements of state and federal law.

4 4. A cost of development element that identifies policies and
5 strategies that the county will use to require development to pay its fair
6 share toward the cost of additional public facility needs generated by new
7 development, with appropriate exceptions when in the public interest.
8 This element shall include:

9 (a) A component that identifies various mechanisms that are allowed
10 by law and that can be used to fund and finance additional public services
11 necessary to serve the development, including bonding, special taxing
12 districts, development fees, in lieu fees and facility construction,
13 dedications and privatization.

14 (b) A component that identifies policies to ensure that any
15 mechanisms that are adopted by the county under this element result in a
16 beneficial use to the development, bear a reasonable relationship to the
17 burden imposed on the county to provide additional necessary public
18 facilities to the development and otherwise are imposed pursuant to law.

19 D. The water resources element of the comprehensive plan does not
20 require:

21 1. New independent hydrogeologic studies.

22 2. The county to be a water service provider.

23 E. In applying an open space element or a growth element of a
24 comprehensive plan, a county shall not designate private or state land as
25 open space, recreation, conservation or agriculture unless the county
26 receives the written consent of the landowner or provides an alternative,
27 economically viable designation in the comprehensive plan or zoning
28 ordinance, allowing at least one residential dwelling per acre. If the
29 landowner is the prevailing party in any action brought to enforce this
30 subsection, a court shall award fees and other expenses to the landowner.
31 Each county shall incorporate this subsection into its comprehensive plan
32 and provide a process for a landowner to resolve discrepancies relating to
33 this subsection.

34 F. The policies and strategies to be developed under these elements
35 shall be designed to have regional applicability.

36 G. For counties with territory in the vicinity of a military
37 airport or ancillary military facility as defined in section 28-8461, the
38 commission shall also consider military airport or ancillary military
39 facility operations and shall identify the boundaries of any high noise or
40 accident potential zone as defined in section 28-8461 in its comprehensive
41 plan for purposes of planning land uses in the high noise or accident
42 potential zone that are compatible with the operation of the military
43 airport or ancillary military facility pursuant to section 28-8481,
44 subsection J.

45 H. For a county that contains any portion of the influence area of
46 a military installation or range or Arizona national guard site, the
47 commission shall also consider respective installation, range or site
48 operations and shall identify the influence area boundaries in its
49 comprehensive plan for the purposes of planning land uses in the influence

1 area that are compatible with the operation of the MILITARY
2 installation, ~~OR~~ OR range or ARIZONA NATIONAL GUARD site. For the purposes
3 of this subsection, "influence area" and "military installation or range
4 or Arizona national guard site" have the same meanings prescribed in
5 section 11-818.01.

6 <<Sec. 2. Title 40, chapter 2, article 6.2, Arizona Revised
7 Statutes, is amended by adding section 40-360.14, to read:

8 40-360.14. Nuclear generating unit; nuclear-ready
9 communities; preference; definition

10 [A. NOTWITHSTANDING ANY OTHER LAW, AN APPLICANT FOR A CERTIFICATE
11 OF ENVIRONMENTAL COMPATIBILITY FOR A PLANT THAT IS A NUCLEAR GENERATING
12 UNIT SHALL MAKE AN EFFORT TO PRIORITIZE THE SITING AND DEVELOPMENT OF THE
13 NUCLEAR GENERATING UNIT AT A SITE THAT IS LOCATED IN OR NEAR A NUCLEAR-
14 READY COMMUNITY. IF THE APPLICATION FOR A CERTIFICATE OF ENVIRONMENTAL
15 COMPATIBILITY IS FOR A SITE THAT IS NOT LOCATED IN OR NEAR A NUCLEAR-READY
16 COMMUNITY, THE APPLICATION SHALL DESCRIBE EACH NUCLEAR-READY COMMUNITY THE
17 APPLICANT CONSIDERED FOR SITING AND DEVELOPMENT OF THE PLANT AND EXPLAIN
18 WHY THE APPLICANT DID NOT SELECT A SITE THAT IS LOCATED IN OR NEAR A
19 NUCLEAR-READY COMMUNITY. THE APPLICANT'S SELECTION OF A SITE FOR THE
20 SITING AND DEVELOPMENT OF A NUCLEAR GENERATING UNIT THAT IS NOT LOCATED IN
21 OR NEAR A NUCLEAR-READY COMMUNITY DOES NOT AUTOMATICALLY DISQUALIFY THE
22 SITE FOR A CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY.

23 B. NOTWITHSTANDING SECTION 40-360.06, WHEN EVALUATING THE
24 SUITABILITY OF A SITE FOR A PLANT THAT IS A NUCLEAR GENERATING UNIT, THE
25 COMMITTEE SHALL CONSIDER, AS EVIDENCE OF THE SITE'S SUITABILITY FOR THE
26 PLANT, THE CONTENT OF ALL RESOLUTIONS A NUCLEAR-READY COMMUNITY HAS
27 ADOPTED PURSUANT TO SECTION 41-1530 OR; IF THE NUCLEAR-READY COMMUNITY IS
28 AN UNINCORPORATED CENSUS-DESIGNATED PLACE, THE CONTENT OF ALL RESOLUTIONS
29 THE COUNTY BOARD OF SUPERVISORS HAS ADOPTED ON BEHALF OF A NUCLEAR-READY
30 COMMUNITY PURSUANT TO SECTION 41-1530.

31 C. FOR THE PURPOSES OF THIS SECTION, "NUCLEAR-READY COMMUNITY" MEANS
32 A CITY, TOWN OR UNINCORPORATED CENSUS-DESIGNATED PLACE THAT HAS BEEN
33 AWARDED A NUCLEAR-READY COMMUNITY DESIGNATION BY THE ARIZONA COMMERCE
34 AUTHORITY PURSUANT TO SECTION 41-1530.]>>

35 <<Sec. 3. Title 41, chapter 10, article 1, Arizona Revised
36 Statutes, is amended by adding section 41-1530, to read:

37 41-1530. Nuclear-ready community designation; criteria;
38 application; process; award; definition

39 [A. THE AUTHORITY, IN CONSULTATION WITH THE CORPORATION COMMISSION,
40 SHALL DEVELOP AND ADOPT CRITERIA FOR AWARDED A NUCLEAR-READY COMMUNITY
41 DESIGNATION TO A COMMUNITY THAT DEMONSTRATES THAT THE COMMUNITY IS WILLING
42 AND READY FOR THE SITING AND DEVELOPMENT OF A NUCLEAR GENERATING UNIT IN
43 OR NEAR THE COMMUNITY. THE CRITERIA TO ATTAIN A NUCLEAR-READY COMMUNITY
44 DESIGNATION MUST INCLUDE ALL OF THE FOLLOWING:

45 1. THE COMMUNITY HOLDING LOCAL PUBLIC EDUCATIONAL MEETINGS TO
46 EDUCATE RESIDENTS AND PROPERTY OWNERS IN AND AROUND THE COMMUNITY ON
47 NUCLEAR ENERGY TECHNOLOGIES. THE NUCLEAR ENERGY ECOSYSTEM AND THE ROLE
48 THAT NUCLEAR ENERGY-RELATED DEVELOPMENT COULD PLAY IN THE COMMUNITY.

1 2. THE AVAILABILITY OF ONE OR MORE SITES IN OR AROUND THE COMMUNITY
2 THAT MAY BE SUITABLE FOR THE SITING AND DEVELOPMENT OF A NUCLEAR
3 GENERATING UNIT.

4 3. IF THE COMMUNITY IS A MUNICIPALITY, THE MUNICIPALITY'S GOVERNING
5 BODY ADOPTING A RESOLUTION THAT DECLARES THAT THE COMMUNITY IS WILLING AND
6 READY FOR THE SITING AND DEVELOPMENT OF A NUCLEAR GENERATING UNIT IN OR
7 NEAR THE COMMUNITY OR; IF THE COMMUNITY IS AN UNINCORPORATED
8 CENSUS-DESIGNATED PLACE, THE ADOPTION OF A RESOLUTION BY THE BOARD OF
9 SUPERVISORS OF THE COUNTY WHERE THE UNINCORPORATED CENSUS DESIGNATED PLACE
10 IS LOCATED ADOPTING A RESOLUTION THAT DECLARES THAT THE COMMUNITY IS
11 WILLING AND READY FOR THE SITING AND DEVELOPMENT OF A NUCLEAR GENERATING
12 STATION IN OR NEAR THE COMMUNITY AND INDICATING THE BOARD OF SUPERVISOR'S
13 ENDORSEMENT OF THE COMMUNITY'S DECLARATION. THE RESOLUTION ADOPTED
14 PURSUANT TO THIS PARAGRAPH MUST INCLUDE ALL OF THE FOLLOWING INFORMATION:

15 (a) THE COMMUNITY'S WILLINGNESS AND READINESS TO FACILITATE THE
16 APPLICATION FOR AND PROCUREMENT OF EARLY SITE PERMITS, CONSTRUCTION
17 PERMITS OR COMBINED OPERATING LICENSES FROM THE UNITED STATES NUCLEAR
18 REGULATORY COMMISSION FOR THE SITING AND DEVELOPMENT OF A NUCLEAR
19 GENERATING UNIT IN OR NEAR THE COMMUNITY, INCLUDING, IF APPLICABLE, AN
20 IDENTIFICATION OF THE PUBLIC, REGULATORY, PERMITTING OR INFRASTRUCTURE
21 SUPPORT THE COMMUNITY IS WILLING AND READY TO PROVIDE.

22 (b) THE IDENTIFICATION, LOCATION AND PREVIOUS USE OF EACH SITE IN
23 OR NEAR THE COMMUNITY THAT THE COMMUNITY BELIEVES IS SUITABLE FOR THE
24 SITING AND DEVELOPMENT OF A NUCLEAR GENERATING UNIT.

25 (c) A DESCRIPTION OF THE ECONOMIC AND DEMOGRAPHIC CONDITION OF THE
26 COMMUNITY AND, IF KNOWN, THE ECONOMIC IMPACT THAT THE SITING AND
27 DEVELOPMENT OF A NUCLEAR GENERATING UNIT IN OR NEAR THE COMMUNITY WOULD
28 HAVE ON THE COMMUNITY, INCLUDING ALL OF THE FOLLOWING:

29 (i) THE NUMBER OF JOBS THAT COULD BE CREATED.

30 (ii) THE AMOUNT OF INFRASTRUCTURE THAT COULD BE DEVELOPED.

31 (iii) THE AMOUNT OF ADDITIONAL CAPITAL INVESTMENT THAT COULD BE
32 MADE.

33 (iv) THE AMOUNT OF ADDITIONAL PUBLIC REVENUES THAT COULD BE
34 COLLECTED.

35 (d) A STATEMENT INDICATING WHETHER THE COMMUNITY OR THE COMMUNITY'S
36 RESIDENTS OR PROPERTY OWNERS HAVE OPPOSED OR REJECTED ANY MAJOR
37 INFRASTRUCTURE PROJECTS OR EMPLOYERS IN THE LAST FIVE YEARS THAT SOUGHT TO
38 LOCATE OR DEVELOP IN OR AROUND THE COMMUNITY AND, IF ANY WERE OPPOSED OR
39 REJECTED, THE REASONS WHY THE COMMUNITY OR THE COMMUNITY'S RESIDENTS OR
40 PROPERTY OWNERS OPPOSED OR REJECTED THE PROJECT OR EMPLOYER.

41 B. THE GOVERNING BODY OF A MUNICIPALITY OR THE COUNTY BOARD OF
42 SUPERVISORS ON BEHALF OF AN UNINCORPORATED CENSUS-DESIGNATED PLACE MAY
43 VOLUNTARILY APPLY TO THE AUTHORITY FOR A NUCLEAR-READY COMMUNITY
44 DESIGNATION IN THE FORM AND MANNER PRESCRIBED BY THE AUTHORITY. THE
45 AUTHORITY SHALL EVALUATE THE APPLICATION AND AWARD THE DESIGNATION BASED
46 ON THE CRITERIA ESTABLISHED PURSUANT TO SUBSECTION A OF THIS SECTION.

47 C. FOR THE PURPOSES OF THIS SECTION, "COMMUNITY" MEANS A
48 MUNICIPALITY OR AN UNINCORPORATED CENSUS DESIGNATED AREA.]]>>

1 Sec. 4. Comprehensive plans; amendment; counties
2 Each county that meets the population threshold prescribed by
3 section 11-804, subsection B, Arizona Revised Statutes, as amended by this
4 act, shall amend the county's comprehensive plan pursuant to section
5 11-805, Arizona Revised Statutes, to comply with the requirements of
6 section 11-804, Arizona Revised Statutes, as amended by this act, within
7 four years of the effective date of this act."

8 Enroll and engross to conform

9 Amend title to conform

FRANK CARROLL

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